

Further Audi Ontario's citation to *Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1130 and that case's quotation from *Robinson Helicopter*, supra, 34 Cal.4th 979 that "[W]here a purchaser's expectations ... are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses." However, Plaintiff did not allege that he bought the Subject Vehicle from Audi Ontario. Plaintiff is also not suing Audi Ontario because of the existence of any warrantable defect in the Subject Vehicle. Additionally, the cited portions of *Food Safety Net* and *Robinson Helicopter* address whether the economic loss rule bars claims for fraud during the performance of a contract. Here, Plaintiff has not alleged either fraud or the existence of a contract between himself and Audi Ontario.

In opposing, Plaintiff argues that the economic loss rule does not bar a negligence claim where the defendant's liability is premised on the negligence performance of a service in breach of a duty imposed by law. Moreover, Plaintiff asserts that in *Robinson Helicopter*, the California Supreme Court made clear that the economic loss rule does not preclude tort claims where the defendant's conduct violates a duty independent of the parties' contractual obligations. (*Robinson Helicopter*, supra, 34 Cal.4th at pp. 988-991.)

Here, the allegations speak of no specific defects and of Audi Ontario's negligent repairs causing damages but no specifics of the damages resulting to conclude the purported negligent repair of a component did not cause damage to the vehicle as a whole to then fall outside the economic loss rule or to another part of the vehicle where it may or may not fall within the economic loss rule. Although generic, Audi Ontario offers no applicable authority that Plaintiff must specifically identify the damages suffered because of its negligence. Furthermore, "[u]nder a general allegation of damages, a plaintiff may prove and recover those damages which naturally and necessarily result from the act complained of." (*Armstrong v. Adams* (1929) 102 Cal.App.677, 682; *Armstrong v. Ford* (1939) 30 Cal.App.2d 347, 353.) Thus, here, it is not clear from the face of the pleading that the economic loss rule applies.

14. *Safai v. Albertsons Companies, Inc., et al*, Case No. CIVSB2507989
Motion for Leave to File First Amended Complaint
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT**. Plaintiff will file the First Amended Complaint (FAC) within twenty (20) days of this order.

Case Summary

This is a slip-and-fall case. Plaintiff alleges that Defendants owned, leased, maintained, controlled, managed, possessed, or otherwise operated the at-issue property. On October 24, 2023, Plaintiff alleges she was on the at-issue property when she slipped and fell on a foreign substances on the floor. The fall resulted in injury. She alleges that the condition was caused by Defendants or their employees and existed for sufficient time that Defendants should have noticed and either warned or remedied the

condition prior to Plaintiff's encounter. As such she filed suit on September 23, 2025, alleging (1) premises liability and (2) general negligence.

Summary of the Law

A motion for leave to amend is directed to the sound discretion of the Court. (Code Civ. Proc., § 473(a)(1).) Policy favors resolution on the merits; thus, the court will usually liberally grant leave to amend a pleading. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) If a motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error, but an abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Procedurally, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) Additionally, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rules of Court, rule 3.1324(b).)

Analysis

Here, Plaintiff seeks leave to amend to add a request for punitive damages, which she argues is supported since Defendant knew its ice-stocking operations were likely to create a dangerous condition on its floor; knew customers could be injured if they encountered it; and nevertheless chose not to require precautions needed to prevent the concern. She further contends that she acted reasonably and diligently in seeking leave to amend only after conducting discovery and gathering evidence to support the proposed amendment. Finally, Plaintiff contends that Defendant will suffer no prejudice from the proposed amendment since no trial date has yet been set, and Defendant has ample time to conduct any additional discovery.

A party may obtain punitive damages where she proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code §3294, subds. (a) & (c).) The necessary facts can be stated as ultimate facts or conclusions of law, as long as they are read in context with the other facts alleged as to the defendant's conduct to "adequately plead the evil motive requisite to recover[] . . . punitive damages." (*Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 510.)

Here, the proposed FAC alleges facts including that Defendant knew that the presence of water on Defendant's polished concrete floor created a dangerous slip-and-fall hazard for customers walking through the store but chose not to adopt, implement, train, supervise, or enforce policies and procedures requiring employees who stocked ice to inspect the surrounding floor while stocking was carried out and after stocking was completed to determine whether ice or water had reached the floor. Plaintiff alleges Defendant also chose not to require employees to place warning signs, cones, or other warnings in the area of the incident during the ice stocking process; chose not to require employees to

temporarily restrict, block, or cordon off the area surrounding the ice freezer while large pallets of ice were being moved, handled, and stocked in an area open to customers; and chose to place a floor mat in front of the ice freezer that did not extend far enough to cover the surrounding area where pallets of ice were moved, handled, and stocked, and where it was foreseeable that water would reach the floor. Further, Plaintiff pleads in the proposed FAC that Defendant's officers, directors, or managing agents had advance knowledge of, authorized, adopted, approved, or ratified the policies, practices, customs, and omissions alleged. Based on the foregoing, it appears the FAC states facts that are sufficient to support a claim for punitive damages. (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230.)

15. *Cervantes v. Aldama, et al*, Case No. CIVSB2619697
Plaintiffs' Motion to Expunge Pendency of Action
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Requests for Judicial Notice: The Court would **GRANT** notice of the 2024 quitclaim deed. (Aldama Decl., Exh. A.) However, the Court would **DENY** the request for notice of the title report.

As to Objections: The Court would **SUSTAIN** the objection to Defendant's evidence offered on reply.

As to the Motion: The Court would **GRANT**.

Case Summary

In this case, Plaintiff alleges he purchased the subject property in 2025 using his own money but using the name and credit of Defendant's late husband. (Compl., ¶11.) Thus, Plaintiff alleges that the property was held in an informal trust in the name of Defendant's late husband for the purpose of maintaining it for Plaintiff's benefit. However, Defendant's late husband subsequently transferred the property to himself and Defendant. Following his passing, Defendant listed the property for sale. As such, Plaintiff filed suit on June 30, 2026, alleging (1) quiet title; (2) slander of title; (3) cancellation of instrument; (4) constructive trust; (5) declaratory relief; and (6) injunctive relief.

Statement of Law

A party who asserts a real property claim may record a notice of pendency – or a *lis pendens* – in which that real property claim is alleged. (Code Civ. Proc., § 405.20.) A real property claim means the causes of action in a pleading, if meritorious, would affect title to or the right of possession of a specific real property. (Code Civ. Proc., § 405.4.)

A *lis pendens* may be ordered removed from the record if (1) the complaint does not contain a real property claim [Code Civ. Proc., § 405.31]; (2) the plaintiff cannot establish the probable validity of his claim by a preponderance of the evidence [Code Civ. Proc., § 405.32]; (3) claim has probable validity, but adequate relief for the claimant can be secured by an undertaking [Code Civ. Proc., § 405.33]; or (4) there was a defect in service or filing. (Code Civ. Proc., § 405.23). The party opposing the motion, i.e., the claimant, bears the burden of proof the complaint contains a real property claim and that there is a probability of prevailing on that real property claim. (Code Civ. Proc., § 405.30.)